



Security Council

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Letter dated 28 November 2022 from the Permanent Representative of the Islamic Republic of Iran to the United Nations addressed to the Secretary-General and the President of the Security Council

I am writing to you in response to the letter dated 22 November 2022 from the representatives of France, Germany and the United Kingdom of Great Britain and Northern Ireland to the United Nations addressed to the Secretary-General and the President of the Security Council (S/2022/878), wherein its authors have once again desperately attempted to establish an unrelated and fictitious link between paragraph 3 of annex B to Council resolution 2231 (2015) and the launches by the Islamic Republic of Iran of certain ballistic missiles or space launch vehicles by repeatedly making flawed and fallacious assertions and resorting to arbitrary and misleading interpretations of the resolution.

The Islamic Republic of Iran categorically rejects all unsubstantiated allegations made against it in the aforementioned letter and reiterates that it has not conducted any activity inconsistent with resolution 2231 (2015).

As has been stated on numerous occasions, including in the letter dated 26 May 2022 (S/2022/438), paragraph 3 of annex B to resolution 2231 (2015), which calls upon Iran “not to undertake any activity related to ballistic missiles designed to be capable of delivering nuclear weapons, including launches using such ballistic missile technology” is unambiguous and does not require interpretation. Contrary to the claims made in the above-mentioned letter (S/2022/878), paragraph 3 of annex B to resolution 2231 (2015) does not concern nor does it apply to space launch vehicles for a number of reasons. First, there is no explicit reference to “space launch vehicles” therein. Second, space launch vehicles do not incorporate technologies identical to “ballistic missiles designed to be capable of delivering nuclear weapons”. Third, “space launch vehicles”, which are exclusively designed to place satellites into orbit, are not “designed to be capable of delivering nuclear weapons”.

The Security Council must take into account the exact provisions and context of resolution 2231 (2015), including the negotiating history and, in particular, the rationale for including the phrase “designed to be capable” in paragraph 3 of annex B to that resolution as well as the Council’s subsequent practice in dealing with the implementation of that paragraph.

In the aforesaid letter, the authors have also invoked non-consensual and non-universally-agreed-upon Missile Technology Control Regime definitions and, in connection with their unfounded claims, made a reference to the terminated and obsolete Security Council resolution 1929 (2010) and to relevant outdated reports in entirely different contexts. To that end, the authors have disseminated technical misinformation



to reach their arbitrary conclusion regarding resolution [2231 \(2015\)](#) and its implementation based on an arbitrary and misleading interpretation of that paragraph.

The Missile Technology Control Regime is an exclusive “informal political understanding” among only 35 States, and its criteria are not legally binding, even for its members. As a result, any attempt to characterize the Missile Technology Control Regime and its criteria as the universally accepted definition or an international consensus-based agreement is unethical, deceptive, suspicious and will not be accepted.

Moreover, in his report dated 23 July 2002 ([A/57/229](#)), the Secretary-General clearly stated, “There is no universally accepted norm or instrument specifically governing the development, testing, production, acquisition, transfer, deployment or use of missiles”. This fact has also been acknowledged by the High Representative for Disarmament Affairs in her remarks before the Security Council on 22 August 2019 wherein she stated, “there remains no universal norm, treaty or agreement regulating missiles” ([S/PV.8602](#)).

The Islamic Republic of Iran has stated time and again that its missile and space programmes, including its launches of ballistic missiles or space launch vehicles, fall outside of the purview or competence of Security Council resolution [2231 \(2015\)](#) and its annexes.

The respective governments of the authors of the aforementioned letter must fully and genuinely comply with all of their respective legal obligations under that resolution, including by refraining from any actions that undermine its implementation of resolution [2231 \(2015\)](#), particularly its annex A, rather than engaging in such an unethical exercise while also repeatedly making politically motivated unfounded claims against the Islamic Republic of Iran.

We caution against any politically driven approach used by certain developed countries with space programmes that seek to demonize the use of space technology for peaceful purposes by developing countries under absurd pretexts, such as proliferation concerns. This hypocritical approach seriously jeopardizes the exercise of States’ inherent right to access space and celestial bodies as well as their freedom to explore and use outer space for peaceful purposes, including their free access to space science, technologies and applications without discrimination of any kind.

We reiterate, once again, that Iran is determined to continue its activities related to ballistic missiles and space launch vehicles, both of which are within its inherent rights under international law and are necessary for the preservation of its security as well as socioeconomic interests.

Given the mandate outlined in the note by the President of the Security Council on the Council’s tasks pursuant to resolution [2231 \(2015\)](#) ([S/2016/44](#)), the Secretary-General is expected to take his mandate seriously and to refrain from reporting on such irrelevant activities in his subsequent reports on the resolution’s implementation. Instead, the Secretary-General is kindly urged to report the non-compliance of France, Germany and the United Kingdom with their obligations under the resolution, based on the aforesaid terms of reference.

I should be grateful if you would have the present letter circulated as a document of the Security Council.

(Signed) Amir Saeid **Iravani**
Ambassador
Permanent Representative